

Court No. - 3

Case :- WRIT - C No. - 23176 of 2011

Petitioner :- Krishna Gopal Pandey

Respondent :- State Of U.P. And Others

Petitioner Counsel :- A. Kumar

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

This writ petition has been filed by the petitioner saying that in spite of an order of the Division Bench of this Court passed on 13th January, 2011 and in spite of the orders being passed by the Court of contempt, no step has been taken by the respondent authority. On the other hand the case of the respondents is that they have sent an estimate for the purpose of electricity connection but the same has not been paid as yet.

The petitioner has raised dispute with regard to the estimate. We are of the view that such disputes cannot be resolved by the Writ Court in view of Sub-section (5) of Section 42 of The Electricity Act, 2003 read with Clause 7.10 of Uttar Pradesh Electricity Supply Code 2005, and the relevant Regulations framed thereunder in the year 2007, therefore, the Writ Court is not the appropriate forum for adjudication of such factual disputes. Hence, the writ petition is dismissed, without any order as to cost.

However, this order will in no way affect the right of the petitioner to proceed in accordance with law.

Order Date :- 21.4.2011

Kst/